

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

MOTION FOR CONFIDENTIAL TREATMENT

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) moves pursuant to 46 C.F.R. §§ 502.5(b), 502.69, and 502.141(j)(1) for the confidential treatment of the non-public version of Complainant’s Response to Respondents’ Motions for Summary Decision (“Response Brief”), Complainant’s Response to Respondents’ Statement of Material Facts and Complainant’s Supplemental Statement of Undisputed Material Facts (“IMCC Supplemental SUMF”), and Supplemental Appendix.

On June 9, 2021, the Presiding Officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality (“Order”), which provides for the confidential treatment of certain materials in this proceeding. On April 29, 2022, IMCC moved for confidential treatment

for portions of its Motion for Summary Decision, and its Statement of Undisputed Material Facts and Appendix in support thereof.

Pursuant to the foregoing and the Initial Order in this proceeding, IMCC respectfully requests confidential treatment for portions of the Response Brief and IMCC's Supplemental SUMF, and continued confidential treatment for certain documents in the Supplemental Appendix that have been designated as Confidential or Confidential Outside Counsel Eyes Only ("OCEO") by IMCC or non-parties pursuant to the Order in the following categories:

1. Deposition transcript excerpts for non-party motor carriers – In response to non-party subpoenas served by Respondents, these non-parties were deposed, during which their corporate witnesses testified regarding commercially- and competitively-sensitive information, including rates that motor carriers charge their customers for chassis, and negotiations for same. The public disclosure of this evidence would damage these non-parties' commercial interests by revealing proprietary and competitively sensitive strategic information.
2. The expert report of Dr. James Langenfeld and exhibits thereto – This expert report submitted on behalf of IMCC contains extensive analyses and discussion of both Respondent and non-party documents and data, including chassis rates paid by motor carriers, designated as Confidential or Confidential OCEO under the Order and that contain commercially- and competitively-sensitive or otherwise non-public information.

In addition, IMCC seeks continuing confidential treatment for documents produced and designated by Respondents as Confidential or Confidential OCEO pursuant to the Order, including (1) deposition transcript excerpts; (2) contracts between Intermodal Equipment

Providers (“IEPs”) and ocean carriers; (3) internal presentations and communications; and (4) internal versions of ocean carrier tariffs.

Pursuant to Rule 502.5(b), IMCC is providing with this Motion the confidential version of its Response Brief, the IMCC Supplemental SUMF, and Supplemental Appendix. Exhibit A to this Motion is a table listing the Bates numbers of each Supplemental Appendix exhibit and indicating in the “Confidential” column whether it has been designated Confidential or Confidential OCEO. Information IMCC seeks permission to redact in the public version of the Response Brief and Supplemental SUMF is highlighted, including images.

Respectfully submitted,

DATED: May 27, 2022

/s/ W. Stephen Cannon

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EXHIBIT A

Description	Date	BegBates	EndBates	Confidential	CX Prodbeg	CX Prodend
Deposition Transcript of Anthony Micena, Yang Ming Marine 143(b)(6) [Excerpts]	1/21/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006163	CX00006167
Deposition Transcript of Dan Compton, HMM 143(b)(6) [Excerpts]	11/17/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006168	CX00006171
Deposition Transcript of Douglass Coates (Respondents Expert) [Excerpts]	3/29/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006172	CX00006193
Deposition Transcript of Glenn Fehribach, ContainerPort Group 143(b)(6) [Excerpts]	1/28/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006194	CX00006196
Deposition Transcript of James Houghtalin, COSCO Shipping Lines 143(b)(6) [Excerpts]	12/17/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006197	CX00006202
Deposition Transcript of Kevin Lhotak, Reliable Transportation Specialists 143(b)(6) [Excerpts]	12/15/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006203	CX00006208
Deposition Transcript of Mark George, IMC Companies 143(b)(6) [Excerpts]	1/19/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006209	CX00006211
Deposition Transcript of Michael Wilson, Consolidated Chassis Management 143(b)(6) [Excerpts]	9/20/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006212	CX00006218
Deposition Transcript of Mike Kelso, Ability Tri-Modal 143(b)(6) [Excerpts]	1/18/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006219	CX00006222
Deposition Transcript of Philip Byrd, Bulldog Hiway Express 143(b)(6) [Excerpts]	1/25/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006223	CX00006225
Deposition Transcript of Tom Wang, Evergreen Line Joint Service Agreement 143(b)(6) [Excerpts]	11/3/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006226	CX00006229
Deposition Transcript of Tyler Rushforth, IMCC	12/7/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006230	CX00006233
Deposition Transcript of Vincenzo Roveccio, MSC 143(b)(6) [Excerpts]	12/3/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006234	CX00006240
CMA's Tariff Rule 500: Chassis/Merchant Haulage U.S.;CMA's U.S. Detention Rule 300	1/8/2022	N/A	N/A		CX00006241	CX00006283
COSCO's Tariff 201:Chassis Usage in the U.S.A.	11/1/2013	N/A	N/A		CX00006284	CX00006284
HMM's Tariff Rule No. 21-02: Chassis Provision	8/10/2021	N/A	N/A		CX00006285	CX00006287
MSC Chassis Usage Charge-for import shipments in to or through the United States of America	2021	MSC0000054	MSC0000055		CX00006288	CX00006289
Yang Ming's Tariff Rule 2-BH: CZ – Chassis Usage	3/17/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006290	CX00006291
Flexi-Van Daily Rentals, https://flexivan.com/daily-rentals/	5/1/2022	N/A	N/A		CX00006292	CX00006292
MICP Clients List (Coates Dep. Ex. 4)	3/29/2022	N/A	N/A		CX00006293	CX00006294
General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and ZIM	1/1/2016	ZIM0002424	ZIM0002435	CONFIDENTIAL-OCEO	CX00006295	CX00006306
U.S. DOJ Letter to Flexi-Van and Direct ChassisLink re: Flexi-Van Leasing, Inc. and Direct ChassisLink, Inc. Business Review Letter Request	9/23/2014	N/A	NA		CX00006307	CX00006309
Deposition Transcript of James Houghtalin, COSCO Shipping Lines 143(b)(6) [Excerpts]	12/17/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006310	CX00006311

CERTIFICATE OF SERVICE

I certify that, on May 27, 2022, a true and correct copy of the foregoing Motion for Confidential Treatment was filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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